

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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ALI FARID,

Plaintiff,

-against-

CITY OF NEW YORK, CASEY GUILLEN, VINCENT
GIAQUINTO, FAUSTO MOISESSANTOS,
CAMERON WONG, MICHAEL QUINTO, and JOHN or
JANE DOE 1-10,

Defendants.
-----X

TO THE ABOVE-NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorneys within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bayside, New York
August 7, 2023

SIM & DEPAOLA, LLP

Attorneys-at-Law

42-40 Bell Boulevard – Suite 405

Bayside, New York 11361

(718) 281-0400

By:



Ataur Raquib, Esq.

Attorneys for Plaintiff

TO: **CITY OF NEW YORK**

Via Corporation Counsel Of The City of New York
100 Church Street
New York, New York 10007

CASEY GUILLEN

Tax Id. No., 967912 and Shield No. 15517
c/o 61st NYPD Precinct
2575 Coney Island Ave
Brooklyn, New York 11223

VINCENT GIAQUINTO

Tax Id. No., 960588 and Shield No. 13765
c/o 61st NYPD Precinct
2575 Coney Island Ave
Brooklyn, New York 11223

CAMERON WONG

Tax Id. No., 967725 and Shield No. 15998
c/o 61st NYPD Precinct
2575 Coney Island Ave
Brooklyn, New York 11223

FAUSTO MOISESSANTOS

Tax Id. No., 967612 and Shield No. 15637
c/o 61st NYPD Precinct
2575 Coney Island Ave
Brooklyn, New York 11223

MICHAEL QUINTO

Tax Id. No., 953283 and Shield No. 4256
c/o NYPD Risk Mitigation Division
1000 Centre Street, Room 1032A
New York, New York 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
ALI FARID,

Plaintiff,

VERIFIED COMPLAINT

-against-

Index No.

CITY OF NEW YORK, CASEY GUILLEN, VINCENT
GIAQUINTO, FAUSTO MOISESSANTOS,
CAMERON WONG, MICHAEL QUINTO, and JOHN or
JANE DOE 1-10,

Defendants.
-----X

Plaintiff, **Mr. ALI FARID**, by and through the undersigned attorneys, Sim & DePaola, LLP, for his complaint against Defendants, **CITY OF NEW YORK, CASEY GUILLEN, VINCENT GIAQUINTO, FAUSTO MOISESSANTOS, CAMERON WONG, MICHAEL QUINTO** and **JOHN or JANE DOE 1-10**, alleges and states as follows:

1. This is a civil rights action, in which Plaintiff seeks relief and redress vis-à-vis sections 1981, 1983, 1985, 1986 and 1988, of title 42, of the United States Code, for the violation of his civil rights protected by the First, Fourth, and Fourteenth Amendments to the Constitution of the United States, the constitution of the State of New York and the laws of the City and State of New York.
2. The following claims arose on November 20, 2020, when Plaintiff was caused to be assaulted, battered, falsely arrested, illegally detained, seized and searched, and falsely arrested by Defendants, including CASEY GUILLEN, VINCENT GIAQUINTO, FAUSTO MOISESSANTOS, CAMERON WONG, MICHAEL QUINTO, and JOHN OR JANE DOE 1-10, acting under color of state law, without a valid judicially authorized arrest warrant, reasonable suspicion, probable cause or any other legal justification to do so.

3. At all times here mentioned, defendants were acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the City and State of New York.

4. Plaintiff has timely served the City of New York, Office of the Comptroller, with notice of his claims within 90 days of the date(s) from which they arose.

5. Over 30 days have elapsed since the filing of the Notice of Claim and this matter has not been adjudicated or settled.

6. Plaintiff has complied with the municipal defendant's request for an oral examination, pursuant to section 50-H of the New York General Municipal Law even though under New York City Human Rights Law under NYC Admin Code §§ 8-801 – 8-806, the Plaintiff is not required to file his Notice of Claim or submit to an oral examination pursuant to section 50-H of the New York General Municipal Law.

7. This action and associated claims have been filed within the applicable statute of limitations, which is three years for state and federal claims.

8. Plaintiff seeks monetary damages (compensatory and punitive) against defendants, an award of costs and reasonable attorney's fees, with all interest then accrued, together with such other or further relief, as this venerable Court may deem just and proper.

PARTIES

9. Plaintiff, Ali Farid ("Mr. Farid") is an adult male Muslim of Arabic descent, who resides in Brooklyn, New York.

10. The Defendant City of New York ("City") is a municipal corporation duly organized and existing under the laws of the State of New York.

11. At all relevant times herein, the New York City Police Department (“NYPD”) was a wholly owned subsidiary which was further wholly operated, managed, maintained and controlled by Defendant City.

12. At all relevant times herein, Defendant City, acting through its NYPD was responsible for the policy, practice, supervision, implementation, and conduct of all NYPD matters and was responsible for the appointment, training, supervision, discipline and retention and conduct of all NYPD personnel, including correction officers, detectives and supervisory officers as well as the individually named Defendants herein.

13. At all relevant times herein, Defendant City was responsible for enforcing the rules of the NYPD, and for ensuring that the NYPD personnel obey the laws of the United States and the State of New York.

14. At all relevant times herein, Defendant CASEY GUILLEN (“GUILLEN”), VINCENT GIAQUINTO (“GIAQUINTO”), CAMERON WONG (“WONG”), FAUSTO MOISESSANTOS (“MOISESSANTOS”), MICHAEL QUINTO (“QUINTO”), were, at all times relevant herein, police officers, detectives, sergeants, lieutenants or other supervisory officers, employed by the NYPD, and, as such, were acting in the capacities of agents, servants and employees of the City of New York. Defendants were, at all times relevant herein, believed to be assigned to the 61st Precinct. Defendants GUILLEN, GIAQUINTO, WONG, MOISESSANTOS and QUINTO are being sued in their official and individual capacities.

15. At all times relevant herein, Defendants JOHN or JANE DOE 1-10 were police officers, detectives, supervisors, policy makers or officials employed by the NYPD. At this time, Plaintiff does not know the true names or tax registry numbers of Defendants JOHN or JANE DOE 1-10, as such knowledge is within the exclusive possession of Defendants.

16. At all times relevant herein, Defendants JOHN or JANE DOE 1-10 were acting as agents, servants and employees of the City of New York or the NYPD. Defendants JOHN or JANE DOE 2-10 are being sued in their individual and official capacities.

17. At all times relevant herein, Defendants, including GUILLEN, GIAQUINTO, MOISESSANTOS, WONG, QUINTO and JOHN or JANE DOE 1-10, were acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the City and State of New York.

18. The names, JOHN or JANE DOE 1–10, are fictitious and meant as placeholders for the Police Officers who violated the constitutional rights of Plaintiff by grabbing him by his body and limbs, despite possessing no legal basis to do so, as Defendant did not possess any credible evidence against Plaintiff regarding the commission of any crime or offense, and who further (1) falsely arrested Plaintiff despite being aware that Plaintiff was a crime victim and not a trespasser, (2) disregarded exculpatory information that Plaintiff was held at the scene against his will and was not trespassing, (3) maliciously prosecuted Plaintiff, and (4) aided, assisted, abetted, and acted in concert with the other defendants to do the same.

19. Within ninety (90) days of accrual dates for these claims, Plaintiff timely filed a written notice of claim with the New York City Office of the Comptroller.

20. Over 30 days have elapsed since the filing of those notices, and this matter has not been settled or otherwise disposed of.

21. Plaintiff has complied with municipal defendant's request for an oral examination pursuant to Section 50-H of the New York General Municipal Law.

22. This action and associated claims have been commenced within three (3) years upon the occurrences which they are based.

FACTUAL CHARGES

23. On November 29, 2020, at approximately 10:00 p.m., within the vicinity 2678 Haring Street, Brooklyn, New York, Plaintiff was illegally detained, seized and searched, questioned , battered and assaulted, and wrongfully arrested by Defendants, including GUILLEN, GIAQUINTO, MOISESSANTOS, WONG, QUINTO, and JOHN OR JANE DOE 1-10.

24. On said date but a shortly before said time, Plaintiff was prevented from walking home by two individuals (“Attackers”) who physically restrained Plaintiff by grabbing him the arms and torso and then physically removed against his will into a nearby alleyway where they physically assaulted and battered him by punching him about his head and body with closed hardened fists in the vicinity of this complained-of-incident, causing Plaintiff to suffer substantial pain, lacerations to his head and body, scarring, bruising, loss of blood, mental anguish, shock, and significant emotional distress.

25. At approximately 10:00 p.m., Defendants GUILLEN, GIAQUINTO, and JOHN OR JANE DOE 2-10 arrived in the vicinity of this complained-of-incident and illegally approached Plaintiff, a complaining victim who suffered a criminal assault just prior due to the criminal conduct of the Attackers.

26. The above Defendants did not observe Plaintiff commit any crime or violation of the law, and in fact, said Defendants observed Plaintiff being held against his will on the ground and by no choice of his own.

27. Defendants GUILLEN, GIAQUINTO, and JOHN OR JANE DOE 1-10 then approached Plaintiff in a threatening and aggressive manner before rear handcuffing him.

28. Defendants, including GUILLEN, GIAQUINTO, and JOHN OR JANE DOE 1-10 then unlawfully arrested Plaintiff by grabbing him by his body and limbs, as Defendants did not possess any credible evidence against Plaintiff regarding the commission of any crime or offense.

29. Defendants, including GUILLEN, GIAQUINTO, and JOHN OR JANE DOE 1-10 then proceeded to physically restrain Plaintiff while violently contorting his arms behind his back before affixing metal handcuffs to Plaintiff's wrists and shackling his ankles in an excessively tight fashion, which caused Plaintiff to sustain substantial physical pain in addition to the injuries he suffered just prior to defendants' arrival, without probable cause, reasonable suspicion, valid search or arrest warrant, or any legal justification whatsoever as the commission of unlawful conduct on the part of Plaintiff.

30. Plaintiff complained to Defendants, including GUILLEN, GIAQUINTO and JOHN OR JANE DOE 1-10, that the handcuffs were too tight and causing him substantial pain but said Defendants refused Plaintiff's requests to loosen their handcuffs.

31. Plaintiff complained to Defendants, including GUILLEN, GIAQUINTO and JOHN OR JANE DOE 1-10, that he lived nearby said location of the incident, that he would take frequent walks in the neighborhood of said location of the incident, that he was not in possession of any weapons or contraband, and that he had never been arrested before.

32. Defendants, including GUILLEN, GIAQUINTO, and JOHN OR JANE DOE 1-10, then illegally searched Plaintiff's persons by rifling through his clothing and pulling out his pockets, despite the clear lack of any indicia of secreted contraband or unlawful activity to justify such invasive procedures.

33. Plaintiff then complained to Defendants, including GUILLEN, GIAQUINTO, and JOHN OR JANE DOE 1-10, that he was assaulted and restrained unto private property by the

aforementioned Attackers and that he had done nothing but said Defendants ignored him and refused to consider the wealth exculpatory evidence that was presented.

34. Defendant GIAQUINTO then illegally interrogated Plaintiff and inquired if Plaintiff knew where he was at present on said date and time, and Plaintiff responded to defendants, including GUILLEN, GIAQUINTO, and JOHN or JANE DOE 1-10, that he was in an alleyway or public area.

35. Defendants, including GUILLEN, GIAQUINTO, and JOHN OR JANE DOE 1-10, then conducted a bad faith police investigation and ignored Plaintiff's complaints and allegations against the Attackers who criminally assaulted Plaintiff just prior, and instead, said defendants questioned the Attackers only with respect to investigating an on-going crime on behalf of Plaintiff.

36. Within fifteen (15) minutes of said date and time, Defendants MOISESSANTOS, WONG, and QUINTO arrived at the scene.

37. Plaintiff then complained again to Defendants, including GUILLEN, GIAQUINTO, MOISESSANTOS, WONG, QUINTO, and JOHN OR JANE DOE 1-10 that he was complaining victim who was assaulted, battered, and restrained by the Attackers, in addition to the readily noticeable and apparent wounds and injuries of Plaintiff, but was ignored said by said defendants, who refused to even consider his allegations against the Attackers who, upon information and belief, did not bear any injury from their physical assault on Plaintiff.

38. During their investigation, Defendants, including GUILLEN, GIAQUINTO, MOISESANTO, WONG, QUINTO, and JOHN OR JANE DOE 1-10, then uncovered no information from either the Attackers or bystanders to indicate that Plaintiff had committed a crime

and spoke among themselves to determine if Plaintiff had committed a crime on said date of incident in their assessment of probable cause or reasonable suspicion to arrest Plaintiff.

39. Upon information and belief, Defendant QUINTO concluded that there was no probable cause, reasonable suspicion, or otherwise any justification for the arrest of Plaintiff.

40. Upon information and belief, Defendant QUINTO was the supervising officer on the scene and conducted and consolidated the ongoing investigation of the incident by questioning, directing, and instructing Defendants, including GUILLEN, GIAQUINTO, MOISESSANTOS, WONG, and JOHN OR JANE DOE 1-10.

41. Defendants, including GUILLEN, GIAQUINTO, MOISESSANTOS, WONG, QUINTO, and JOHN OR JANE DOE 1-10, then accused falsely accused Plaintiff of a criminal offense by proceeding with his false arrest and illegal detainment, without probable cause, reasonable suspicion, valid search or arrest warrant, or any legal justification whatsoever.

42. Defendants, including GUILLEN, GIAQUINTO, MOISESSANTOS, WONG, QUINTO, and JOHN OR JANE DOE 1-10, ignored evidence exculpating Plaintiff in that: (1) he thought, believed, and stated he was in an alleyway, (2) he lived within close proximity to the location of incident, (3) he had no prior arrests, (4) no complaining witness observed Plaintiff commit a crime on the date of this complained-of-incident.

43. Defendants, including GUILLEN, GIAQUINTO, MOISESSANTOS, WONG, QUINTO, and JOHN OR JANE DOE 1-10, lacked any probable cause or reasonable suspicion arrest Plaintiff, because Defendants never observed Plaintiff commit any crime or violation of the law.

44. Due to the lack of probable cause for the searches or seizures of Plaintiff's person, the aforementioned conduct constituted the completed torts of Assault and Battery by Defendants,

including GUILLEN, GIAQUINTO, MOISESSANTOS, WONG, QUINTO, and JOHN OR JANE DOE 1-10.

45. As a result of the conduct by the Attackers, Plaintiff was then transported to Coney Island Hospital to receive treatment for his injuries by Defendants, including GUILLEN, GIAQUINTO, MOISESSANTOS, WONG, QUINTO, and JOHN OR JANE DOE 1-10.

46. Thereafter, approximately six (6) hours after said date and time of the incident, Plaintiff was then transported against his will to the 61st Precinct where he was detained for approximately four hours by Defendants, including GUILLEN, GIAQUINTO, MOISESSANTOS, WONG, QUINTO, and JOHN OR JANE DOE 1-10, before being released on November 30, 2020, at approximately 9:00 p.m.

47. During his illegal detainment, Plaintiff was told by Defendants GUILLEN, GIAQUINTO, MOISESSANTOS, WONG, QUINTO, and JOHN OR JANE DOE 1-10 that he was being held because he was a Muslim and that said Defendants needed to check with another governmental agency in Albany.

48. Upon information and belief, at no point in time from Plaintiff's arrest to his release from custody did Defendants, including GUILLEN, GIAQUINTO, MOISESSANTOS, WONG, QUINTO, and JOHN OR JANE DOE 1-10, read Plaintiff his rights.

49. Defendants, including GUILLEN, GIAQUINTO, MOISESSANTOS, WONG, QUINTO, and JOHN OR JANE DOE 1-10, engaged in a gross deviation from acceptable police conduct and other conduct undertaken in bad faith.

50. Plaintiff asserts that Defendants, including GUILLEN, GIAQUINTO, MOISESSANTOS, WONG, QUINTO, and JOHN OR JANE DOE 1-10, falsely arrested and wrongfully detained Plaintiff with the full knowledge that he had committed no crimes or violations of the law.

51. As a result, Plaintiff was caused to be unlawfully, involuntarily, and continuously detained by defendants, including GUILLEN, GIAQUINTO, MOISESSANTOS, WONG, QUINTO, and JOHN OR JANE DOE 1-10, over the course of two (2) days, until his release from physical custody on, or about, November 30, 2020.

52. At all times relevant hereto, the Defendants, including GUILLEN, GIAQUINTO, MOISESSANTOS, WONG, QUINTO, and JOHN OR JANE DOE 1-10, were involved in the decision to stop, seize, search and arrest Plaintiff without reasonable suspicion or probable cause, or failed to intervene when they observed others doing so in the absence of any reasonable suspicion or probable cause.

53. At all times relevant hereto, the Defendants, including GUILLEN, GIAQUINTO, MOISESSANTOS, WONG, QUINTO, and JOHN OR JANE DOE 1-10, subjected Plaintiff to excessive force, or failed to intervene when they observed others subjecting Plaintiff to excessive force.

54. Prior to Plaintiff being arraigned in criminal court, Defendants, including GUILLEN, GIAQUINTO, MOISESSANTOS, WONG, QUINTO, and JOHN OR JANE DOE 1-10, signed, attested and filed the criminal court complaint against Plaintiff which falsely accused Plaintiff of a criminal offense and other related charges.

55. Defendants, including GUILLEN, GIAQUINTO, MOISESSANTOS, WONG, QUINTO, and JOHN OR JANE DOE 1-10, knowingly, maliciously and intentionally engaged in the fabrication of false and fictitious evidence, observations, events and occurrences, which Defendants falsely attributed to Plaintiff before forwarding to prosecutors.

56. Defendants, including GUILLEN, GIAQUINTO, MOISESSANTOS, WONG, QUINTO, and JOHN OR JANE DOE 1-10, engaged in fraud, the suppression of evidence, perjury, the gross deviation from acceptable police conduct and other conduct undertaken in bad faith.

57. Plaintiff asserts that Defendants, including GUILLEN, GIAQUINTO, MOISESSANTOS, WONG, QUINTO, and JOHN OR JANE DOE 1-10, falsely arrested, wrongfully detained, and maliciously prosecuted Plaintiff with the full knowledge that he had committed no crimes or violations of the law.

58. Plaintiff, therefore, asserts that due to the clear absence of any viable probable cause to warrant his criminal prosecution, at any point, he was denied his rights to Fair Trial and Due Process and was maliciously prosecuted from the moment of his arraignment, until the criminal proceeding was irrefutably terminated in favor of Plaintiff when all charges were dismissed and sealed on, or about, March 24, 2021, pursuant to sections 160.50 and 160.60 of the New York Criminal Procedure Law.

59. Defendant City and the individually named police officers herein, have engaged in a policy, custom, or pattern and practice of illegally stopping, searching, arresting and criminally prosecuting Muslim males due solely to their impermissible and uncorroborated belief that such presence is tantamount to the commission of such suspected criminality.

60. Plaintiff asserts that the aforementioned unlawful acts committed by Defendants are representative of a pervasive policy, custom or pattern and practice within the City of New York and the NYPD in particular.

61. Plaintiff asserts that Defendants, including GUILLEN, GIAQUINTO, MOISESSANTOS, WONG, QUINTO, and JOHN OR JANE DOE 1-10, illegally approached, stopped, searched, and then falsely arrested him, due solely to their racially discriminatory prejudices against Muslim

males, their intent to use the instant arrest as leverage against Plaintiff, so that they would provide Defendants with information regarding Defendants' true and only suspects, or other unrelated crimes or criminal suspects, their desires to fulfill an unconstitutional arrest quota and to benefit from increased overtime compensation.

62. Plaintiff further asserts that Defendants, including GUILLEN, GIAQUINTO, MOISESSANTOS, WONG, QUINTO, and JOHN OR JANE DOE 1-10, acted in such an unlawfully reprehensible manner, due to their unsubstantiated and unreasonable presumptions that Plaintiffs would be able provide said Defendants with information pertaining to unrelated criminal activity or suspects, solely because of his status as a Muslim male.

63. Defendants, including GUILLEN, GIAQUINTO, MOISESSANTOS, WONG, QUINTO, and JOHN OR JANE DOE 1-10, arrested Plaintiff, because of their racially discriminatory beliefs, which compelled Defendants to equate to Plaintiff's respective race, ethnicity or national origin to criminal guilt or criminal knowledge.

64. Defendants, including GUILLEN, GIAQUINTO, MOISESSANTOS, WONG, QUINTO, and JOHN OR JANE DOE 1-10, perpetrated multiple overt acts in furtherance of their obviously discriminatory inclinations and biases, namely the stop, search, assault, battery, seizure, and arrest of Plaintiff, despite possessing no evidence, credible or otherwise, to justify such conduct.

65. Defendants, including GUILLEN, GIAQUINTO, MOISESSANTOS, WONG, QUINTO, and JOHN OR JANE DOE 1-10, unlawfully stopped, questioned, searched, seized, and arrested Plaintiff, due solely to Defendants' perception or consideration of Plaintiff's respective race, ethnicity, national origin, sex, gender or age.

66. Defendants, including GUILLEN, GIAQUINTO, MOISESSANTOS, WONG, QUINTO, and JOHN OR JANE DOE 1-10, unlawfully stopped, questioned, searched, seized, and arrested

Plaintiff, because of their improper and pernicious desires to prevent Plaintiff from exerting his First Amendment rights to engage in protected speech and activities, such as Plaintiff's refusal to yield to Defendants' unreasonably coercive demands to utter false confessions or assist defendants in the fabrication of evidence against Defendants' true suspects or other persons of interest.

67. Defendants, including GUILLEN, GIAQUINTO, MOISESSANTOS, WONG, QUINTO, and JOHN OR JANE DOE 1-10, possessed no valid reason to approach, stop, question, search or arrest Plaintiff, which gives rise to the strong inference that such conduct resulted from Defendants' unjust motivations or proclivities, including Defendants' invidious and biased based discriminatory predilections against Hispanic males, such as Plaintiff, Defendants' desire to retaliate, punish or otherwise penalize Plaintiff for his refusal to submit to the will of Defendants by answering questions to the satisfaction of Defendants.

68. Defendants, including JOHN OR JANE DOE 1-10, subjected Plaintiff to disparate treatment compared to other White or Asian individuals similarly situated, because Defendants did not stop, accuse, search, seize, arrest or cause criminal prosecutions to be initiated against any White or Asian pedestrians, who were engaged in activity identical or substantially similar to the kind that resulted in the illegal search, seizure, detention of Plaintiff, namely walking on a sidewalk while in full obedience of all local, state and federal rules, regulations, statutes and laws.

69. Defendants, including GUILLEN, GIAQUINTO, MOISESSANTOS, WONG, QUINTO, and JOHN OR JANE DOE 1-10, engaged in a conspiracy to falsely arrest Plaintiff by personally conferring with each other, regarding the suppression of exculpatory evidence.

70. Plaintiff asserts that the Defendants, including GUILLEN, GIAQUINTO, MOISESSANTOS, WONG, QUINTO, and JOHN OR JANE DOE 1-10, who violated their civil rights, are part of a larger pattern and practice of similar misconduct, which is so widespread,

pervasive and consistent throughout the NYPD and the City of New York that the commission of such constitutionally violative behavior has become tantamount to an official policy or custom within the NYPD and City of New York or, at the very least, conclusive evidence that the City and the NYPD have either tacitly approved of such egregious wrongdoings or that they have become deliberately indifferent to the civil rights of those who may come into contact with their police officers, including the individually named Defendants herein.

71. The individually named defendants herein, as well as other officers serving in the employ of the NYPD and City of New York, have blatantly, shamelessly, consistently and repeatedly engaged in conduct violative of the civil rights guaranteed and protected by Constitution of the United States, in addition to the laws and constitution of the State of New York, all without incurring any ramifications for such misconduct and, ostensibly, with the full and complete blessing of the NYPD, the City of New York and their respective policymakers and supervisors.

72. *The New York Times*, as well as numerous other reputable journalistic enterprises, have reported on the widespread corruption within the NYPD and City of New York, particularly the incredibly disconcerting proclivity of many NYPD officers to lie about subject matters that are materially relevant to criminal prosecutions, including the complete fabrication of arrest evidence and witnesses. Also detailed, is the NYPD's obstinate refusal to effectuate corrective or preventive measures to combat the inevitable recurrence of such misdeeds, and perhaps most troubling, the NYPD's alarming tendency to, instead, reward and promote these officers, including those who were inculcated via incontrovertible evidence, such as video evidence.

73. The constitutionally repugnant behavior that persists within the ranks of the NYPD results from the NYPD's own policies, rules and procedures, namely the NYPD's incredibly flawed and illegal use of arrest quotas. Despite its illegality, such policies remain systemic throughout the

NYPD and its individual commands. The NYPD, however, was not content in compelling its officers to effect as many arrests as possible, regardless of the presence of any legal right to do, it promulgated various subsets of quotas, which are predicated on race, color or ethnicity. Additionally, the NYPD, its supervisors or policymakers would assign varying point values to arrests, which were, again, impermissibly based upon the arrestee's race, color or ethnicity. Unsurprisingly, officers would be better rewarded for minority arrests or summonses. This egregious conduct has reported by numerous respected media outlets and publications and has even formed the basis for federal lawsuits against the City and the NYPD, which were commenced by its own employee officers.

74. On June 17, 2020, the *New York Daily News* published an article, by Graham Rayman, entitled "Brooklyn Cop Claims he was Punished for not Meeting Arrest Quotas, Refusing to Take Responsibility for Controversial Arrest in which he Wasn't Involved," describing allegations from an NYPD Police Officer, Terrence Dickerson, that he was retaliated against by the NYPD for refusing to adhere to mandatory racially based arrest quotas and for his refusal to accept responsibility for a controversial and publicized arrest via the excessive force, despite the fact that he was not even at the scene.

75. Another article with a title that speaks for itself, also published by the *New York Daily News*, on December 5, 2019, and written by Graham Rayman, is entitled "Ex-Cop Details NYPD 'Collar Quotas'—Arrest Black and Hispanic Men, 'No Cuffs on Soft Targets' of Jews, Asians, Whites: Court Docs."

76. *The New York Times*, on December 6, 2019, published an article by Joseph Goldstein and Ashley Southall, entitled "I Got Tired of Hunting Black and Hispanic People," which revealed a

disturbing account from a different NYPD Police Officer, Anthony Diaz, describing a police force that measures the quality of police work by the quantity of minority arrests.

77. On March 18, 2018, *The New York Times* published an explosive article, entitled “Promotions, Not Punishments for Officers Accused of Lying,” written by Joseph Goldstein. Mr. Goldstein shines a light on the multitude of flaws within the CCRB and the NYPD, highlighting the fact that the substantiation of a claim against an officer will invariably rely on the presence of incontrovertible proof against the officer. Due to the rarity availability of this type of evidence, an alarmingly small percentage of officer misconduct claims are substantiated. The CCRB is further handicapped by a terribly designed system that requires evidence of a virtually indisputable nature to substantiate any claim against an officer. The article also details the NYPD’s persistent reluctance to investigate or discipline officers who lie and even posits that this reluctance is a significant cause of the lying pandemic within the NYPD. The article references various officers and detectives who were the subject of credible accusations relating to the officers’ intentionally false statements, with some allegations coming from federal and state judges.

78. On September 12, 2019, *The New York Times* published another article by Joseph Goldstein, entitled “Officers Said They Smelled Pot. The Judge Called Them Liars.” Unsurprisingly, this article dealt with the unusually high frequency of officers using the odor of marijuana to excuse a search that conspicuously does not result in the recovery of any marijuana. It should not require an article in *The New York Times* to call attention to such patently disingenuous tactics, but has become necessary for a variety of reasons, including the NYPD’s failure to correct such behavior, the willingness of prosecutors and judges to credit the lying officers and the increasing rate of occurrence.

79. On April 24, 2019, *The New York Times* published an article, entitled “Detective’s Lies Sent Three People to Prison, Prosecutors Charge,” by Sean Piccolo, detailing the lies of NYPD Second Grade Detective Joseph Franco and how those lies resulted in the imprisonment of at least three innocent people. The article described how Det. Franco lied about observing drug transactions on at least three separate occasions, lies that were only uncovered through contradictory video evidence. Det. Franco’s lies resulted in the innocent individuals each being sentenced to prison terms in excess of one-year.

80. Other articles include: (i) “Testilying’ by Police: A Stubborn Problem.,” by Joseph Goldstein, *The New York Times*, March 18, 2018; (ii) “New York Detective Charged with Faking Lineup Results,” by Joseph Goldstein, *The New York Times*, February 17, 2018; (iii) “He Excelled as a Detective, Until Prosecutors Stopped Believing Him,” by Joseph Goldstein, *The New York Times*, October 17, 2017; (iv) “Review Board Notes Rise in New York Police Officers’ False Statement,” by J. David Goodman, *The New York Times*, May 14, 2015; (v) “In Brooklyn Gun Cases, Suspicion Turns to the Police,” by Stephanie Clifford, *The New York Times*, December 11, 2014; (vi) “Detective is Found Guilty of Planting Drugs,” by Tim Stelloh, *The New York Times*, November 1, 2011; and (vii) “The Drugs? They Came from the Police,” by Jim Dwyer, *The New York Times*, October 13, 2011.

81. The NYPD has a longstanding and ignominious record of failing to discipline its officers, or even entertaining allegations of wrongdoing against them. On June 26, 2019, *The New York Times* published an article, entitled “2,495 Reports of Police Bias. Not One Was Deemed Valid by the N.Y.P.D.” This article reported that within the last five (5) years, almost 2,500 separate individuals have filed formal complaints with the NYPD alleging that an officer acted with bias toward them, with not a single one being substantiated by the NYPD. Such a finding is plainly

incredible and obviously the result of deliberately poor or nonexistent investigatory protocols. The report further impugned the NYPD's commitment to combat the prejudices and the biases exhibited by many of its officers.

82. Upon information and belief, the NYPD, the City of New York, and their respective policymakers, officials or supervisors have imposed, tacitly approved or acquiesced to policies, customs, or patterns and practices within the NYPD that resulted in Plaintiff's arrests without probable cause.

83. Upon information and belief, the NYPD, the City of New York, and their respective policymakers or supervisors have failed to provide adequate training regarding the identification of probable cause, reasonable suspicion or the appropriate amount of force to be used.

84. Defendants' actions, pursuant to Plaintiff's underlying arrest, which occurred without even the semblance of probable cause, were so blatantly violative of Plaintiff's civil rights that the tacit approval of identical or similar acts by the policymakers or supervisors of the NYPD and the City of New York, as well as their deliberate indifference towards the rights of any individuals who may come into contact with Defendants, should be inferred, because such flagrant deprivations of constitutionally protected rights could not and would not occur without the tacit approval or deliberate indifference regarding the commission of such violations by the policymakers or supervisors of the NYPD and City of New York.

85. Upon information and belief, further details and facts, relating to the unlawful policies, customs or patterns and practices of the NYPD, City of New York and their respective policymakers, supervisors, police officers or employees, will become known after the completion of discovery, as such information is presently within the exclusive possession of Defendants, the NYPD and City of New York.

86. Upon information and belief, the personnel files, records and disciplinary histories of the officer Defendants will reveal a history of Constitutional violations indicative of Defendant City's knowledge that the individual officer Defendants were unfit for employment as NYPD officers, or for employment in general, and that the probability of the individually named Defendants committing similar violations in the future was extremely high.

87. Upon information and belief, said personnel files, records and disciplinary histories will conclusively show that the City and the NYPD were fully aware of Defendants' past constitutional violations, the unacceptably high probability for the recurrence of similar transgressions, the unreasonably dangerous situations that were likely to result from their hiring or retention, as well as their unsuitability for employment as law enforcement officers, or for employment in general, and that the NYPD and City of New York failed to engage in any preventive or corrective action intended to diminish the likelihood of recurrence for such violations, which is tantamount to the City's tacit approval of such misconduct or the City's deliberate indifference towards the civil rights of those who may interact with its employees, including Defendants, including GUILLEN, GIAQUINTO, MOISESSANTOS, WONG, QUINTO, and JOHN OR JANE DOE 1-10.

88. Upon information and belief, the individually named Defendants have combined to be named as Defendants in numerous lawsuits that have accused them of committing violations similar or identical to those alleged herein, all of which have resulted no disciplinary or corrective action of any kind.

89. Upon information and belief, the NYPD and City of New York and have failed, or outright refused, to correct the individually named Defendants' predilections to engage in unconstitutional behavior or attempt to prevent the recurrence of such misconduct.

90. The aforementioned acts of Defendants, including the City, GUILLEN, GIAQUINTO, MOISESSANTOS, WONG, QUINTO, and JOHN OR JANE DOE 1-10, directly or proximately resulted in the deprivation or violation of Mr. Farid's rights, as enumerated and set forth by the First, Fourth, Fifth, Sixth and Fourteenth Amendments to the Constitution of the United States, the constitution of the State of New York and the laws of the City and State of New York.

91. As direct or proximate results of said acts, Plaintiff was caused to suffer the loss of their liberty, irreparable reputational harm, the loss of earnings and potential earnings, substantial and permanent physical and psychological injuries, as well as severe and permanent emotional distress, including fear, embarrassment, humiliation, traumatization, frustration, extreme inconvenience and anxiety.

FIRST CAUSE OF ACTION

Free Speech Retaliation Claim Under
New York State Law

92. The above paragraphs are here incorporated by reference as though fully set forth herein.

93. Plaintiff engaged in speech and activities that were protected by Article I, Section 8, of the New York State Constitution.

94. Defendants committed impermissible or unlawful actions against Plaintiff that were motivated or substantially caused by Plaintiff's constitutionally protected speech or activities.

95. Defendants' retaliatory actions against Plaintiff resulted in the deprivation of his liberty and the initiation of criminal charges against him.

96. Defendants' retaliatory actions adversely affected Plaintiff's protected speech or activities by physically or procedurally preventing him from further pursuing said protected speech or activities or by chilling his desire to further participate or engage in such protected speech or activities.

97. Accordingly, Plaintiff's right to engage in protected speech and activities, guaranteed and protected by Article I, Section 8, of the New York State Constitution, was violated by Defendants.

98. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoings, under the doctrine of respondeat superior.

99. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

SECOND CAUSE OF ACTION

First Amendment Retaliation Claim Under
42 U.S.C. § 1983 Against Individual Defendants

100. The above paragraphs are hereby incorporated by reference as though fully set forth herein.

101. Plaintiff engaged in speech and activities that were protected by the First Amendment to the United States Constitution.

102. Defendants committed impermissible or unlawful actions against Plaintiff that were motivated or substantially caused by Plaintiff's constitutionally protected speech or activities.

103. Defendants' retaliatory actions against Plaintiff resulted in the deprivation of his liberty and the initiation of criminal charges against him.

104. Defendants' retaliatory actions adversely affected Plaintiff's protected speech or activities by physically or procedurally preventing him from further pursuing said protected speech or activities, or by chilling his desire to further participate or engage in such protected speech or activities.

105. Accordingly, Plaintiff's right to engage in protected speech and activities, as guaranteed and protected by the First Amendment to the United States Constitution, was violated by Defendants.

106. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

THIRD CAUSE OF ACTION

Unlawful Search & Seizure Under
New York State Law

107. The above paragraphs are here incorporated by reference as though fully set forth herein.

108. Defendants subjected Plaintiff and his property to unreasonable searches and seizures without a valid warrant and without reasonable suspicion or probable cause do so.

109. Plaintiff was conscious and fully aware of the unreasonable searches and seizures to his person and property.

110. Plaintiff did not consent to the unreasonable searches and seizures to his person or property.

111. The unreasonable searches and seizures to Plaintiff's person and property were not otherwise privileged.

112. Accordingly, Defendants violated Plaintiff's right to be free from unreasonable searches and seizures, pursuant to Article I, Section 12, of the New York State Constitution and Article II, Section 8, of the New York Civil Rights Law.

113. Defendant City of New York, as employer of the individual Defendants, is responsible for their wrongdoings under the doctrine of respondeat superior.

As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

FOURTH CAUSE OF ACTION

Unlawful Search & Seizure Under
42 U.S.C. § 1983 Against Individual NYPD Defendants

114. The above paragraphs are here incorporated by reference as though fully set forth herein.

115. Defendants subjected Plaintiff and his property to unreasonable searches and seizures without a valid warrant and without reasonable suspicion or probable cause do so.

116. Plaintiff was conscious and fully aware of the unreasonable searches and seizures to his person and property.

117. Plaintiff did not consent to the unreasonable searches and seizures to his person or property.

118. The unreasonable searches and seizures to Plaintiff's person and property were not otherwise privileged.

119. Accordingly, Defendants violated Plaintiff's right to be free from unreasonable searches and seizures, pursuant to the Fourth Amendment to the United States Constitution.

120. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

FIFTH CAUSE OF ACTION

False Arrest & False Imprisonment Under
New York State Law

121. The above paragraphs are here incorporated by reference as though fully set forth herein.

122. Defendants subjected Plaintiff to false arrest, false imprisonment, and deprivation of liberty without a valid warrant or probable cause.

123. Plaintiff was conscious of his confinement.

124. Plaintiff did not consent to his confinement.

125. Plaintiff's arrest and false imprisonment was not otherwise privileged.

126. Defendant City of New York, as employer of individual Defendants, is responsible for their wrongdoings under the doctrine of respondeat superior.

127. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

SIXTH CAUSE OF ACTION

False Arrest & False Imprisonment Under
42 U.S.C. § 1983 Against Individual NYPD Defendants

128. The above paragraphs are here incorporated by reference as though fully set forth herein.

129. At all relevant times, Defendants violated the Fourth and Fourteenth Amendments to the U.S. Constitution by wrongfully and illegally arresting, detaining and imprisoning Plaintiff.

130. The wrongful, unjustifiable, and unlawful apprehension, arrest, detention, and imprisonment of Plaintiff was carried out without a valid warrant, without Plaintiff's consent, and without probable cause or reasonable suspicion.

131. At all relevant times, Defendants acted forcibly in apprehending, arresting, and imprisoning Plaintiff.

132. As a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged.

SEVENTH CAUSE OF ACTION

Assault & Battery Under
New York State Law

133. The above paragraphs are hereby incorporated by reference as though fully set forth.

134. Defendants caused Plaintiff's fear for his physical well-being and safety and placed him in apprehension of immediate harmful or offensive touching.

135. Defendants, including engaged in and subjected Plaintiff to immediate harmful or offensive touching and battered him without his consent or other legal justification therefor.

136. Defendant City, as employer of the individual Defendants is responsible for their wrongdoing under the doctrine of respondeat superior.

137. As a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged.

EIGHTH CAUSE OF ACTION

Excessive Force Under
42 U.S.C. § 1983 Against Individual NYPD Defendants

138. The above paragraphs are here incorporated by reference as though fully set forth herein.

139. The Defendants violated Plaintiff's rights under the Fourth and Fourteenth Amendments, because they used unreasonable force without Plaintiff's consent.

140. Defendants engaged in and subjected Plaintiff to immediate harmful or offensive touching and battered him without his consent.

141. As a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged.

NINTH CAUSE OF ACTION

Violations of Victims of Violent Crime Protection Act Under
New York City Law

142. The above paragraphs are here incorporated by reference as though fully set forth herein.

143. Defendants' acts or series of acts constituted the commission of a misdemeanor or felony against Plaintiff, as defined in state or federal law, which presented a serious risk of physical injury to Plaintiff, regardless of whether said acts actually resulted in criminal charges, prosecutions or convictions.

144. Accordingly, Defendants committed crimes of violence against Plaintiff and violated his rights, pursuant to section 10-403 of the Administrative Code of the City of New York.

145. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

146. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

TENTH CAUSE OF ACTION

Biased Based Profiling Under
New York City Law

147. The above paragraphs are hereby incorporated by reference as though fully set forth herein.

148. Defendants impermissibly relied upon the actual or perceived race, color, national origin, ancestry, citizenship status, gender, religion, religious practice, age, disability or sexual orientation of Plaintiff as the determinative factor in initiating law enforcement actions against Plaintiff, rather than Plaintiff's behavior or other information or circumstances that would link Plaintiff to suspected unlawful activity.

149. Accordingly, Defendants violated Plaintiff's rights, pursuant to section 14-151 of the Administrative Code of the City of New York.

150. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

151. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

ELEVENTH CAUSE OF ACTION

Deprivation of Rights & Denial of Equal Protection of the Law Under
New York State Law

152. The above paragraphs are hereby incorporated by reference as though fully set forth herein.

153. Plaintiff, as an Arab male Muslim, is a member of a racial minority and protected class.

154. Defendants discriminated against Plaintiff on the basis of race, color, national origin, ancestry, gender, religion, religious practice, age, disability or sexual orientation.

155. Defendants also engaged in the selective treatment of Plaintiff, in comparison to others similarly situated.

156. Defendants' discriminatory treatment of Plaintiff was based on impermissible considerations, such as race, color, ethnicity, an intent to inhibit or punish Plaintiff for the exertion of his Constitutional rights, or a malicious or bad faith intent to injure Plaintiff.

157. Defendants applied facially neutral laws against Plaintiff in a discriminatory manner.

158. Defendants, motivated by racial animus, applied facially neutral statutes with adverse effects against Plaintiff.

159. Defendants did not possess a rational basis, excuse or justification for applying any laws or statutes against Plaintiff.

160. Accordingly, Defendants violated Plaintiff's rights, pursuant to article I, section 11, of the constitution of the State of New York, article VII, section 79-N, of the New York Civil Rights Law and section 296, paragraph 13, of the New York Executive Law.

161. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

162. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

TWELFTH CAUSE OF ACTION

Deprivation of Rights & Denial of Equal Protection of the Law Under
42 U.S.C. §§ 1981 & 1983 Against Individual NYPD Defendants

163. The above paragraphs are hereby incorporated by reference as though fully set forth herein.

164. Plaintiff, as a Arab male Muslim, is a member of a racial minority and protected class.

165. Defendants discriminated against Plaintiff on the basis of race, color, ethnicity or national origin.

166. Defendants engaged in the selective treatment of Plaintiff in comparison to others similarly situated.

167. Defendants' selective treatment of Plaintiff was based on impermissible considerations, such as race, color, ethnicity, an intent to inhibit or punish Plaintiff for the exertion of their Constitutional rights, or malicious or bad faith intent to injure Plaintiff.

168. Defendants applied facially neutral laws against Plaintiff in a discriminatory manner.

169. Defendants, motivated by racial animus, applied facially neutral penal statutes with adverse effects against Plaintiff.

170. Defendants did not possess a rational basis, excuse or justification for applying any laws or statutes against Plaintiff.

171. Accordingly, Defendants violated Plaintiff's rights, under the Equal Protection Clause of the Fourteenth Amendment to the Constitution of the United States.

172. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

173. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

THIRTEENTH CAUSE OF ACTION

Conspiracy to Interfere with Civil Rights & Failure to Prevent the Conspiracy Under
42 U.S.C. §§ 1983, 1985 & 1986 Against Individual Defendants

174. The above paragraphs are hereby incorporated by reference as though fully set forth herein.

175. Defendants engaged in a conspiracy against Plaintiff to deprive him of his rights to engage in protected speech or activities, to be free from unreasonable searches and seizures, to be afforded a fair trial, and to not be deprived of his liberty or property without Due Process of law, in addition

to Plaintiff's Constitutionally guaranteed privileges and immunities under the Fifth and Fourteenth Amendments to the Constitution of the United States.

176. Defendants committed overt acts in furtherance of their conspiracy against Plaintiff.

177. As a result, Plaintiff sustained injuries to their persons, was deprived of his liberty, rights or privileges as a citizen of the United States.

178. Defendants' conspiracy was motivated by a desire to deprive Plaintiff of his civil rights or because of some racial or otherwise class-based, invidious or discriminatory animus.

179. The Defendants that did not engage or participate in the conspiracy to interfere with Plaintiff's civil rights, had knowledge that acts in furtherance of the conspiracy were about to be committed or in the process of being committed, possessed the power to prevent or aid in the prevention of the conspiratorial objective, and neglected to do so.

180. Accordingly, Defendants violated Plaintiff's rights, pursuant to the First, Fourth, Fifth, Sixth and Fourteenth Amendments to the Constitution of the United States.

181. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

182. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

FOURTEENTH CAUSE OF ACTION

Failure to Intervene Under
New York State Law

183. The above paragraphs are hereby incorporated by reference as though fully set forth herein.

184. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct, observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct, and failed to intervene.

185. Defendants are subject to liability for violations of the constitution of the State of New York and violations of New York City Human Rights Law under NYC Admin Code §§ 8-801 – 8 – 806.

186. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

187. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

FIFTEENTH CAUSE OF ACTION

Failure to Intervene Under
42 U.S.C. § 1983 Against Individual NYPD Defendants

188. The above paragraphs are here incorporated by reference as though fully set forth herein.

189. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct, and failed to intervene.

190. Accordingly, the Defendants who failed to intervene violated the Fourth and Fourteenth Amendments.

191. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

SIXTEENTH CAUSE OF ACTION

Negligent Hiring, Training, Retention & Supervision Under
New York State Law

192. The above paragraphs are hereby incorporated by reference as though fully set forth.

193. Defendant City owed a duty of care to Plaintiff to adequately hire, train, retain and supervise its employee Defendants.

194. Defendant City breached those duties of care.

195. Defendant City placed the individually named Defendants herein in a position where they could inflict foreseeable harm.

196. Defendant City knew or should have known of the individual named Defendants' propensities for violating the individual civil rights of those they interacted with prior to the injuries incurred by Plaintiff.

197. Defendant City failed to take reasonable measures in hiring, training, retaining or supervising the individually named defendants, which would have prevented or mitigated the aforesaid injuries suffered by Plaintiff.

198. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

SEVENTEENTH CAUSE OF ACTION

Malicious Prosecution Under
New York State Law

199. The above paragraphs are here incorporated by reference as though fully set forth herein.

200. Defendants initiated the prosecution against Plaintiff.

201. Defendants lacked probable cause to believe Plaintiff was guilty or that the prosecution would succeed.

202. Defendants acted with malice, which, in the absence of probable cause, may be inferred.

203. The prosecution was terminated in Plaintiff's favor, when all criminal charges were unconditionally dismissed and sealed.

204. Due to the intentional, willful and unlawful acts of Defendants, Plaintiff suffered significant damages.

205. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

206. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

EIGHTEENTH CAUSE OF ACTION

Malicious Prosecution Under
42 U.S.C. § 1983 Against Individual NYPD Defendants

207. The above paragraphs are here incorporated by reference as though fully set forth herein.

208. Defendants initiated the prosecution against Plaintiff.

209. Defendants lacked probable cause to believe Plaintiff was guilty or that the prosecution would succeed.

210. Defendants acted with malice, which, in the absence of probable cause, may be inferred.

211. The prosecution was terminated in Plaintiff's favor, when all criminal charges were unconditionally dismissed and sealed.

212. Accordingly, Defendants violated Plaintiff's Fourth and Fourteenth Amendment rights.

213. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

NINETEENTH CAUSE OF ACTION

Malicious Abuse of Process Under
New York State Law

214. The above paragraphs are hereby incorporated by reference as though fully set forth.

215. Defendants arrested, detained and caused criminal prosecutions to be initiated against Plaintiff to compel the compliance or forbearance of some act.

216. Defendants had no excuse or justification to forcibly detain or initiate criminal prosecutions against Plaintiff, especially in the absence of any cognizable probable cause.

217. Defendants intended to inflict substantial harm upon Plaintiff.

218. Defendants acted to achieve a collateral purpose, beyond or in addition to the criminal prosecutions initiated and thereafter maintained against Plaintiff.

219. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

220. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

TWENTIETH CAUSE OF ACTION

Malicious Abuse of Process Under
42 U.S.C. § 1983 Against Individual NYPD Defendants

221. The above paragraphs are hereby incorporated by reference as though fully set forth.

222. Defendants arrested, detained and caused criminal prosecution to be initiated against Plaintiff to compel the compliance or forbearance of some act.

223. Defendants had no excuse or justification to forcibly detain or initiate criminal prosecution against Plaintiff, especially in the absence of any cognizable probable cause.

224. Defendants intended to inflict substantial harm upon Plaintiff.

225. Defendants acted to achieve a collateral purpose, beyond or in addition to the criminal prosecution initiated and thereafter maintained against Plaintiff.

226. Defendants' actions therefore resulted in deprivations to Plaintiff's rights, pursuant to the Fourth and Fourteenth Amendments to the Constitution of the United States.

227. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

TWENTY-FIRST CAUSE OF ACTION

Municipal "*Monell*" Liability Under
42 U.S.C. § 1983 Against Defendant City

228. The above paragraphs are here incorporated by reference as though fully set forth.

229. Defendant City maintained a policy or custom that caused Plaintiff to be deprived of his civil rights, tacitly approved of such violative conduct or was deliberately indifferent toward the potential exposure of individuals, such as Plaintiff, to such violative behavior.

230. Defendant City's employee police officers have engaged in an illegal pattern and practice of misconduct, so consistent and widespread that it constitutes a custom or usage, of which a supervisor or policymaker must have been aware of.

231. Defendant City, its policymakers and supervisors failed to provide adequate training or supervision to their subordinates, to such an extent that is tantamount to the City's deliberate indifference toward the rights of those who may come into contact with Defendant City's employees.

232. Defendant City's employees engaged in such egregious and flagrant violations of Plaintiff's Constitutional rights that the need for enhanced training or supervision is obvious and equates to a display of deliberate indifference by Defendant City and its policymakers toward the rights of individuals, who may come into contact with Defendant City's employees.

233. Defendant City's repeated refusal or failure to install or apply corrective or preventive measures constitutes the tacit approval of such violative behavior or a deliberate indifference to the rights of those who may be affected by such behavior.

234. Defendant City's conduct caused Plaintiff to be deprived of his civil rights, as guaranteed by the Constitution of the United States, via the First, Fourth, Fifth, Sixth & Fourteenth Amendments thereto.

235. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

WHEREFORE, Plaintiff respectfully requests judgment against Defendants, jointly and severally, as follows:

- a) On the First Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- b) On the Second Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- c) On the Third Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- d) On the Fourth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- e) On the Fifth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- f) On the Sixth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- g) On the Seventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- h) On the Eighth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- i) On the Ninth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- j) On the Tenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- k) On the Eleventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- l) On the Twelfth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- m) On the Thirteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- n) On the Fourteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- o) On the Fifteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- p) On the Sixteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- q) On the Seventeenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- r) On the Eighteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- s) On the Nineteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- t) On the Twentieth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- u) On the Twenty-First Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- v) Awarding Plaintiff punitive damages in an amount to be determined by a jury on all causes of action set forth herein;

w) Awarding Plaintiff reasonable attorney's fees and costs pursuant to 42 U.S.C. § 1988;

Together with the costs and disbursements of this action.

JURY DEMAND

Plaintiff hereby demands a trial by jury.

Dated: Bayside, New York
August 7, 2023

SIM & DEPAOLA, LLP

Attorneys-at-Law

42-40 Bell Boulevard – Suite 405

Bayside, New York 11361

(718) 281-0400

By:

A handwritten signature in black ink, appearing to read 'Ataur Raquib', is written over a horizontal line.

Ataur Raquib, Esq.

Attorneys for Plaintiff

ATTORNEY VERIFICATION

I, Ataur Raquib, an attorney admitted to practice in the courts of New York State, state that I am an associate with the firm of SIM & DEPAOLA, LLP, the attorneys of record for Plaintiff in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief and, as to those matters, I believe it to be true. This verification is made by me and not by Plaintiff, because Plaintiff resides outside the county where deponent maintains his office. I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: Bayside, New York

August 7, 2023


ATAUR RAQUIB, ESQ.